

COMMERCIAL LEASE AGREEMENT

THIS LEASE AGREEMENT (this "Lease") is made and entered into as of the 15th day of December, Two Thousand Twenty-Four (2024), by and between:

(1) **Rainey Street Properties III, LLC**, a Texas limited liability company having its principal office at 98 San Jacinto Boulevard, Suite 400, Austin, TX 78701, and Employer Identification Number 87-3049126 (the "Landlord");

AND

(2) **Rootbridge Technologies, Inc.**, a Delaware corporation having its principal office at 401 Congress Avenue, Suite 3200, Austin, TX 78701, and Employer Identification Number 46-5120884 (the "Tenant").

WHEREBY IT IS AGREED AS FOLLOWS:—

1. INTERPRETATION

1.1. In this Lease, unless the contrary intention appears:—

"Building" means the building known as 600 Congress Avenue, Austin, Texas, within which, among other things, the Premises are situated, together with the land on which it stands.

"Common Area" means such common parts and facilities of the Building as may be designated by the Landlord from time to time for the non-exclusive common use of the tenants, licensees, invitees and occupants of the Building, in common with the Landlord, provided always that the Landlord may at any time and from time to time reduce, enlarge or otherwise alter the Common Area as the Landlord in its sole discretion deems fit.

"Commencement Date" means January 1, 2025.

"Deposit" means the sum deposited by the Tenant with the Landlord pursuant to Clause 4.

"Building Rules" means all rules and regulations for the use, occupancy and management of the Building and the Common Area promulgated by the Landlord from time to time, as the same may be suspended, deleted, expanded or otherwise amended or updated in any way from time to time.

"Interest" means interest at the rate of one and one-half percent (1.5%) per month (eighteen percent (18%) per annum) accruing on a daily basis (both before and after judgment, if any).

"Landlord" includes the Landlord's successors in title and permitted assigns and any other person who is at any time entitled to the reversion immediately expectant on the determination of this Lease.

"month" means calendar month.

"Permitted Use" means the use of the Premises as provided in Clause 5.

"Premises" means the premises situated at Suite 1200, 600 Congress Avenue, Austin, TX 78701.

"Rent" means the monthly Base Rent payable by the Tenant to the Landlord in accordance with Clause 3.

"Tenant" includes the Tenant's successors in title and permitted assigns; and

"Tenant's Occupiers" means the Tenant's servants, agents, independent contractors, licensees, sub-tenants (if consented to in writing by the Landlord), invitees and any person claiming rights to use, enjoy, visit or be at the Premises expressly or by implication with the Tenant's consent or authority.

"Term" means the term of years granted by this Lease.

1.2. In any case where the Tenant is placed under a restriction by reason of the covenants and conditions contained in this Lease, the restriction shall be deemed to include the obligation on the Tenant not to permit or allow the infringement of the restriction by any of the Tenant's Occupiers.

- 1.3. The Schedules to this Lease shall be taken, read and construed as part of this Lease and shall have the same force and effect as if expressly set out in the body of this Lease. The clause and paragraph headings are for ease of reference only and shall not be taken into account in the construction or interpretation of any provision in this Lease.
- 1.4. Where the context so admits, words importing the singular meaning shall include the plural meaning and vice versa, words importing the masculine gender shall include the feminine and neuter gender and vice versa, and words denoting natural persons shall include corporations and firms, and all such words shall be construed interchangeably in that manner.
- 1.5. Any reference in this Lease to any statute or statutory instrument shall include and refer to any statute or statutory instrument amending, consolidating or replacing the same respectively from time to time and for the time being in force.

2. DEMISE AND TERM OF THE LEASE

- 2.1. In consideration of the Rent and the covenants hereby reserved by and contained in this Lease, the Landlord HEREBY DEMISES to the Tenant the Premises, EXCEPTING AND RESERVING to the Landlord the rights stated in Schedule 1, TO HOLD the same unto the Tenant for the Term.
- 2.2. The Term shall be from **January 1, 2025 to December 31, 2026**.
- 2.3. The fixturing (rent-free) period shall be from **December 1, 2024 to December 31, 2024**, during which the Tenant may access the Premises to carry out its initial improvements, subject to all other provisions of this Lease.

3. RENT

- 3.1. The Rent shall be **Sixteen Thousand and 00/100 United States Dollars (US\$16,000.00)** per month.
- 3.2. The Tenant shall pay to the Landlord the Rent payable monthly in advance on or before the first day of each month without demand and free and clear of all deductions, set-offs and counterclaims.
- 3.3. Payment of Rent shall be made by ACH transfer, wire transfer or check to such account as the Landlord shall specify from time to time. The current details are:

Bank: JPMorgan Chase Bank, N.A.
 Bank Address: 700 Lavaca Street, Austin, TX 78701
 Beneficiary: Rainey Street Properties III, LLC
 Account No.: 483920571
 ABA / Routing No.: 111000614
 SWIFT (wires): CHASUS33
 Checks shall be made payable to Rainey Street Properties III, LLC.

4. DEPOSIT

- 4.1. The Tenant shall, on or before the signing of this Lease, furnish to the Landlord the Deposit of **Forty-Eight Thousand and 00/100 United States Dollars (US\$48,000.00)**, which is equivalent to three (3) months' Rent under Clause 3.1.
- 4.2. The Tenant shall, on or before the signing of this Lease, furnish to the Landlord the Utility Deposit of **Two Thousand Five Hundred and 00/100 United States Dollars (US\$2,500.00)**.
- 4.3. The Deposit and the Utility Deposit shall be held by the Landlord as security for the due performance and observance by the Tenant of all and singular the covenants, provisions and stipulations on the part of the Tenant contained in this Lease and as security for any claim by the Landlord at any time against the Tenant in relation to any matter in connection with the Premises whether the Lease is subsisting or not.
- 4.4. If the Tenant shall commit a breach of any of the provisions of this Lease, the Landlord shall be entitled but not obliged to apply the Deposit or any part thereof in or towards payment of moneys outstanding or in making good any breach by the Tenant or to deduct from the Deposit the loss or expense occasioned to the Landlord by such breach, without prejudice to any other right or remedy which the Landlord may be entitled to. If any part of the Deposit shall be so applied by the Landlord, the Tenant shall within seven (7) days of demand by the Landlord deposit in cash with the Landlord the amount so applied by the Landlord. No part of the Deposit shall, without the written consent of the Landlord, be set off by the Tenant against any Rent or other sum owing to the Landlord. Subject to any proper deductions to be made by the Landlord pursuant to the provisions of this Lease,

the Deposit (subject to any proper deductions made by the Landlord) shall be repaid to the Tenant without interest after the expiration of the Term.

5. PERMITTED USE OF PREMISES

- 5.1. The Tenant shall use the Premises for general business office purposes only.
- 5.2. The Tenant shall obtain at the Tenant's own expense and comply with all applicable licenses, permits and approvals in connection with such use, including but not limited to all licenses applicable under all federal, state and local health, safety and environmental laws and ordinances, and all other relevant authorities including but not limited to all change-of-use approvals from the City of Austin and Travis County zoning and land-use authorities, and shall cause all licenses to be displayed in and upon the Premises.

6. COVENANTS

- 6.1. The Tenant hereby covenants with the Landlord that it will perform and observe the provisions and stipulations contained in Schedule 2.
- 6.2. The Landlord hereby covenants that, subject to the payment by the Tenant of the Rent and compliance by the Tenant with all the obligations and conditions on the part of the Tenant to be performed and observed, the Landlord will perform and observe the following:—
 - (i) pay and discharge all present and future rates, taxes, assessments, impositions and outgoings imposed upon or in respect of the Premises or any part thereof, save and except such as are agreed to be paid by the Tenant, including but not limited to the taxes specified in Paragraph 3 of Schedule 2; and
 - (ii) that the Tenant duly paying the Rent and performing and observing the several covenants and conditions contained in this Lease and on the Tenant's part to be performed and observed shall peaceably hold and enjoy the Premises during the Term hereby created without any interruption or disturbance by the Landlord or any person rightfully claiming under or in trust for the Landlord.

7. TERMINATION

- 7.1. The parties agree and declare that if and when any one or more of the following events occurs:—
 - (i) all or any part of the Rent shall be unpaid for seven (7) days after becoming due (whether or not any formal demand has been made); or
 - (ii) the Tenant shall at any time fail or neglect to perform or observe, or do or permit to be done, any act, matter or thing contrary to or in breach of, any of its obligations, covenants or undertakings in this Lease other than a failure under Sub-Clause (i) above, and such default, if capable of being remedied, is not remedied to the satisfaction of the Landlord within seven (7) days after the Landlord has given notice thereof to the Tenant; or
 - (iii) the Tenant becomes insolvent, or is unable to pay its debts, or stops or suspends, or threatens to stop or suspend, payment of all or a material part of its debts, or proposes or makes a general assignment or any arrangement or composition with or for the benefit of its creditors, or a moratorium is agreed or declared in respect of or affecting all or a material part of its indebtedness; or any step or petition is taken by any person including the Tenant or for the Tenant to be placed under bankruptcy, receivership or reorganization, or a receiver and/or manager or trustee is appointed in respect of any properties or assets of the Tenant, or distress or execution is levied or enforced upon or sued against any part of the properties or assets of the Tenant; or if events or circumstances analogous to any of the foregoing events occur in relation to the Tenant under the laws of any jurisdiction; or
 - (iv) a proposal or notice of condemnation or intended condemnation or eminent-domain taking is made or issued by any governmental authority or public agency in respect of the Premises;

then the Landlord or any person authorized by the Landlord may at any time thereafter terminate this Lease by service of written notice on the Tenant or by re-entering the Premises or any part thereof in the name of the whole. This Lease shall cease and determine upon service of written notice or re-entry, as the case may be and whichever is earlier. Except in the case of termination pursuant to Sub-Clause (iv) above, the Landlord shall be entitled to forfeit the Deposit and the Tenant shall pay to the Landlord compensation for all loss and damage suffered by the Landlord including but not limited to (a) the loss of Rent and all other sums of monies payable by the Tenant had the Term been completed (subject to the Landlord

mitigating its losses) and (b) all other expenses and costs incurred by the Landlord consequential upon the termination including all costs and expenses to secure another lease.

The foregoing is without prejudice to the right of action, and any other right and remedy, of the Landlord in respect of any antecedent breach by the Tenant of this Lease (including the breach giving rise to the termination).

(v) Notwithstanding that the tenancy is for a term of two (2) years from January 1, 2025, it may be determined after a period of twelve (12) months from the Commencement Date by the Tenant giving to the Landlord four (4) calendar months' notice in writing by certified mail of the Tenant's intention to end the tenancy.

7.2. The Landlord shall, in the event of any default described in Clause 7.1(ii) above, at its absolute discretion and option, either in addition to or in lieu of termination under Clause 7.1 above, be entitled but shall not in any way be obliged to do the following:

(i) to perform the said obligation, covenant or undertaking on behalf of the Tenant and/or to engage architects, contractors, workmen and/or agents and/or enter and remain at the whole or any part of the Premises, with or without such architects, contractors, workmen and agents, for such purpose; and

(ii) to demand payment of all costs and expenses paid or incurred by the Landlord resulting from the Tenant's default and/or pursuant to Clause 7.2(i) above, and any sum so demanded shall be payable by the Tenant to the Landlord within seven (7) days of demand. A certificate from the Landlord as to the amount of cost and expenses incurred shall, in the absence of manifest error, be final, conclusive and binding on the Tenant.

7.3. Anything done by the Landlord pursuant to the provisions of Clause 7.2 shall be without prejudice to any other right, remedy and power of the Landlord in this Lease and shall not constitute a waiver or release of the Tenant from its obligations, covenants and undertakings.

8. CASUALTY AND DESTRUCTION

8.1. Subject to Clause 8.2, if the Premises or any part thereof shall at any time be damaged or destroyed so as to render the Premises unfit for occupation and use (except where such damage or destruction has been caused by, or payment of any insurance policy monies is withheld in whole or in part in consequence of, any act, omission, negligence or default of the Tenant or the Tenant's Occupiers), the Rent reserved by this Lease or a fair and just proportion thereof according to the nature and extent of the damage sustained shall be suspended until the Premises shall again be rendered fit for occupation and use. Any dispute concerning this Clause shall be determined by a single arbitrator in accordance with the Federal Arbitration Act and the Texas General Arbitration Act.

8.2. Notwithstanding the provision of Clause 8.1:—

(i) after the occurrence of such damage or destruction the Landlord may at any time and in its absolute discretion terminate this Lease by serving one (1) month's written notice on the Tenant; or

(ii) if the Premises shall continue to be unfit for occupation for a period of more than one hundred and twenty (120) days, either the Landlord or the Tenant shall be at liberty by giving one (1) month's written notice to the other to terminate this Lease.

Any upon a notice under either Clause 8.2(i) or 8.2(ii) above being given, this Lease shall terminate and the Tenant shall (if still in occupation) vacate the Premises upon the expiry of such notice without compensation from the Landlord, but without prejudice however to any right or remedy that either party may have against the other for any antecedent breach of this Lease.

8.3. If, after the Premises or any part thereof shall have been damaged or destroyed as described in Clause 8.1, the Landlord decides, at its absolute discretion, to proceed with the reinstatement or repair of the same, all insurance monies payable pursuant to any insurance effected by the Tenant pursuant to this Lease in respect of all fixtures and fittings and installations at the Premises (and any additional insurances as may have been required by the Landlord) shall be applied towards such reinstatement and repair.

8.4. If, after the said damage or destruction, the Lease is determined in accordance with Clause 8.2(i) or Clause 8.2(ii) above, all insurance monies payable pursuant to any insurance effected by the Landlord in respect of the Premises shall belong to the Landlord solely.

9. HOLDING OVER

If, without any express written agreement between the Landlord and the Tenant, the Tenant fails to deliver vacant possession of, or continues to occupy, the Premises after the expiration or earlier determination of the Term, the Tenant shall be deemed to be holding over and, without prejudice to any right or remedy of the Landlord, for every day of such holding over shall pay to the Landlord double the amount of Rent or the prevailing market rent (whichever is higher), and there shall be no renewal of this Lease by operation of law or pursuant to the provisions of this Lease. During the period of such holding over all other provisions of this Lease shall be and remain in effect. The provisions herein shall not be construed as the Landlord's consent for the Tenant to hold over after the expiration or earlier determination of the Term. All sums under this Clause shall be payable by the Tenant to the Landlord within seven (7) days of demand.

10. MISCELLANEOUS

10.1. Payments: The Tenant covenants to pay to the Landlord promptly as and when due, without demand, deduction, set-off, or counterclaim whatsoever, all sums due and payable by the Tenant to the Landlord pursuant to the provisions of this Lease, and covenants not to exercise or seek to exercise any right or claim to legal or equitable set-off.

10.2. Notices: All communications required to be made under this Lease shall be made in writing and shall be sent to the receiving party at the address and marked for the attention of the person (if any), from time to time designated by the party to the other party for the purpose of this Lease. The initial address and person (if any) so designated by each party are:—

LANDLORD

Rainey Street Properties III, LLC
98 San Jacinto Boulevard
Suite 400
Austin, TX 78701

TENANT

Rootbridge Technologies, Inc.
401 Congress Avenue
Suite 3200
Austin, TX 78701

Any party may change its address and/or person designated for the purposes hereof by written notice to the other. Any communication from one party to the other party shall be deemed to be received:—

- (i) if delivered by hand, at the time of delivery;
- (ii) if the address for notice is within the same country as the place of dispatch, if sent by certified, first class or express mail or other fast postal or courier service, on the date two (2) days after posting;
- (iii) if the address for notice is outside the country of the place of dispatch, if sent by certified, first class or express mail or other fast postal or courier service, on the date five (5) days after posting; and
- (iv) if transmitted by way of electronic mail or other electronic media, at the time of transmission, subject to a confirmation copy being sent by post within 24 hours.

10.3. Landlord's consent: In any case where the Landlord's consent or approval is required, such consent or approval shall be obtained in writing before the act or event to which it applies is carried out or occurs. Such consent or approval may be withheld or given at the Landlord's absolute discretion or given subject to such terms and conditions as the Landlord deems fit.

10.4. Costs and expenses: The Tenant agrees to pay the Landlord on a full indemnity basis:—

- (i) all the Landlord's reasonable legal costs and fees, a lease documentation and administration fee of **Six Hundred Twenty and 60/100 Dollars (\$620.60)**, and all disbursements incurred in connection with the preparation and completion of this Lease (in duplicate);
- (ii) all the Landlord's costs and expenses (including the costs of the Landlord's attorneys, architects, engineers and surveyors where applicable and whether or not legal, arbitration or other proceedings are instituted) incurred in preserving or enforcing any of the Landlord's rights under this Lease and incurred in connection with every application made by the Tenant for any consent or approval required under this Lease whether or not such consent or approval shall be granted or given;
- (iii) the leasing broker's commission paid by the Landlord to [Aquila Commercial, LLC] for procuring the Tenant on a pro-rated basis calculated by reference to the unexpired Term in the event that the Lease is terminated prematurely for any reason whatsoever; and
- (iv) the rent-free period given for this Lease in Clause 2.3 on a pro-rated basis calculated by reference to the unexpired Term in the event that the Lease is terminated prematurely for any reason whatsoever.

10.5. No waiver: Knowledge or acquiescence by the Landlord of any breach by the Tenant shall not operate or be deemed to operate as a waiver of any of the Landlord's rights in respect of such breach. Any consent or waiver of the Landlord shall be effective

only if given in writing and shall not be construed as a condition or obligation and shall not prejudice in any way the rights, powers and remedies of the Landlord.

- 10.6. Title: The Landlord shall not be required to deduce its title to the Premises nor to reply to any requisitions on the title.
- 10.7. No recording: The Tenant shall not, at any time before, during or after the Term, record this Lease nor a memorandum thereof nor lodge any lien or caveat in respect of this Lease (or in respect of any renewal of this Lease) in the real property records or with any governmental authority.
- 10.8. No representations; entire agreement: The Landlord shall not be bound by any statement, representation or promise with respect to the Premises, except as expressly set forth in this Lease. This Lease sets forth the entire agreement between the Landlord and the Tenant and shall in no way be modified by any statements, representations or promises made prior to the signing of this Lease. The Landlord does not expressly or impliedly warrant that the Premises are or will remain suitable or adequate for all or any of the purposes of the Tenant, and all warranties (if any) as to suitability and adequacy of the Premises implied by law are hereby expressly negated.
- 10.9. Severability: The illegality, invalidity or unenforceability of any provision of this Lease under the law of any jurisdiction shall not affect its legality, validity or enforceability under the law of any other jurisdiction nor the legality, validity or enforceability of any other provision.
- 10.10. Governing law and submission to jurisdiction: This Lease shall be construed and governed by the laws of the State of Texas, and the parties hereby irrevocably submit to the exclusive jurisdiction of the state and federal courts located in Travis County, Texas.
- 10.11. No third-party beneficiaries: A person who is not a party to this Lease has no right to enforce any term of this Lease.

SCHEDULE 1
RIGHTS RESERVED BY THE LANDLORD

1. Easements and access: The Landlord excepts and reserves unto itself the rights of ingress to and egress from the Premises which the Tenant is obliged to grant the Landlord, or for the Landlord to exercise any of the Landlord's rights, under this Lease.
2. Landlord's right to Interest for late payment: If the Rent or part thereof or any other sum payable by the Tenant to the Landlord shall be in arrears and unpaid for seven (7) days after becoming due and payable, the Tenant shall pay Interest on the amount unpaid from the date when such amount becomes due and payable to the date of payment by the Tenant to the Landlord (both before as well as after judgment), and such monies shall be recoverable as if they were rent in arrears without prejudice to any other right, remedy and power of the Landlord in this Lease.
3. Removal of property after expiry or earlier determination of tenancy
 - 3.1. If, upon the expiry or earlier determination of this Lease, the Tenant shall fail to remove from the Premises any property belonging to the Tenant or any rubbish or discarded article, then the Landlord may, as the agent and at the cost and expense of the Tenant, remove, store, dispose of or sell such property and dispose of such rubbish or discarded article as the Landlord thinks fit. If the Landlord is unable to lease, or otherwise deal with, the Premises for any period of time due to the Tenant's failure to remove the property, rubbish or discarded article, the Tenant shall be deemed to be holding over during such period for the purpose of Clause 9. The Landlord shall apply the proceeds of the sale of the Tenant's property, if any, after deducting the costs and expenses of removal, storage, disposal and sale reasonably and properly incurred by the Landlord, towards discharging any sum due from the Tenant to the Landlord under the provisions of this Lease and shall hold the balance thereof, if any, to the order of the Tenant. If there are no sale proceeds, or if such proceeds are insufficient, then all outstanding sums recoverable by the Landlord under this paragraph shall be payable by the Tenant to the Landlord within seven (7) days of demand.
 - 3.2. The Tenant shall indemnify the Landlord against any and all liability incurred by the Landlord to any third party whose property shall have been sold or disposed of by the Landlord in the bona fide belief (which shall be presumed unless the contrary be proved) that such property belonged to the Tenant and was liable to be dealt with as such pursuant to this paragraph.
4. Landlord's ability to deal with adjoining property and Common Area: The Landlord may deal as it thinks fit with all Common Areas and other property adjoining or nearby belonging to the Landlord, and without prejudice to the foregoing, may erect or permit to be erected on such property any buildings irrespective of whether they affect or diminish the light or air which may now or at any time be enjoyed by the Tenant in respect of the Premises.
5. Landlord's right to assign
 - 5.1. The Landlord shall be entitled to assign all its rights and interest in, under or arising out of this Lease.
 - 5.2. Where the Landlord shall transfer and/or assign all or any part of its estate, title, right or interest in the Premises and/or in, under or arising out of this Lease, the Tenant hereby consents to such transfer and/or assignment (and, in particular, the Tenant hereby agrees that the Landlord may assign and transfer the Landlord's right to, and obligations in respect of, the Deposit to the Landlord's transferee and/or assignee) and shall accept any transferee and/or assignee of the Landlord as its new Landlord and shall release the Landlord from, and cease to have any right, claim or demand against the Landlord in respect of, all the Landlord's obligations under the provisions of this Lease and in particular the obligation of the Landlord to refund the Deposit and any other sums pursuant to the terms of this Lease. Where required by the Landlord, the Tenant shall enter into and execute as a party thereto any agreement or deed entered into or to be entered into by the Landlord and its assignee, such agreement or deed to be prepared at the expense of the Landlord.
6. Landlord's Lien: It is hereby expressly agreed that all the moneys payable under this Lease by the Tenant to the Landlord, including but not limited to Rent, taxes and Interest payable on late payments, shall be secured by a landlord's lien on the Tenant's non-exempt personal property located at the Premises to the fullest extent permitted under the Texas Property Code and applicable law. For the purpose of any right or remedy which the Landlord wishes to exercise or pursue, all such moneys shall be deemed to be in arrears if not paid in advance or at the times and in the manner provided in this Lease. All costs and expenses (including all legal costs and charges on a full indemnity basis) incurred pursuant to, or in any way arising in relation

to, any step taken by the Landlord shall be payable by the Tenant, and insofar as such sums are not recovered under such lien, they shall be recoverable as a debt from the Tenant to the Landlord.

SCHEDULE 2
TENANT'S COVENANTS

The Tenant HEREBY COVENANTS with the Landlord as follows:—

1. **Rent**: The Tenant shall pay the Rent at the times and in the manner specified in Clause 3.
2. **Utilities and Telecommunication Services**: The Tenant shall apply to the applicable water and wastewater utility (Austin Water) and/or other appropriate authorities for the installation and testing of all utility meter(s) or sub-meter(s) at the Premises, and to the applicable electric utility (Austin Energy) and telecommunications providers for the installation of any electrical and telecommunication facilities, and shall pay all charges imposed in respect of the installation and supply of any equipment or appliances or lines and water (if any), electricity and any other services supplied and metered separately to the Premises which it shall consume on or which are supplied to the Premises. Where such services are not separately metered, the Tenant shall pay on demand to the Landlord the cost of the services. Such costs shall be notified to the Tenant by a written statement which shall be conclusive against the Tenant as to the amount thereof.
3. **Taxes**
 - 3.1. In the event that any additional property tax is payable on account of (i) any increase in the assessed value for the Premises which is in excess of the assessed value calculated on the basis of the annual Rent payable under this Lease; and/or (ii) an increase in the property tax rate imposed or levied after the date of commencement of this Lease, such additional property tax shall be borne and paid by the Tenant to the Landlord on demand.
 - 3.2. Objection to any assessment of value or imposition of property tax on the Premises in respect of the duration covered by the Term may be made only by the Landlord in its sole discretion.
 - 3.3. The Tenant shall also pay and indemnify the Landlord against any sales, use, gross receipts, margin or similar tax that may now or hereafter be assessed, substituted for, or in addition to, and chargeable in respect of the Rent, Deposit and all sums paid or payable by the Tenant in connection with this Lease. The Tenant shall, unless the Landlord otherwise consents in writing, effect payment of any such tax together with payment of Rent, Deposit and all sums paid or payable by the Tenant in accordance with this Lease or otherwise in such manner and within such period to comply with or to enable the Landlord to comply with any applicable laws or directives, and shall indemnify the Landlord against any penalties, costs and expenses incurred by the Landlord as a result of any breach by the Tenant of this provision.
 - 3.4. The obligation of the Tenant under the provisions of this paragraph shall continue to apply notwithstanding the expiry or earlier determination of the Term and regardless of whether any of the aforesaid taxes shall be assessed and/or payable to the relevant government authority before, during or after the Term.
4. **Insurance**
 - 4.1. The Tenant shall, at its own cost and expense, at all times during the Term take out and keep in force in the joint names of the Landlord and the Tenant:—
 - (i) a comprehensive all-risk insurance policy including but not limited to commercial general (public) liability insurance and fire insurance; and
 - (ii) shall apply for and expend insurance monies received expeditiously in compensating any claim for personal injury or loss of life and in restoring, replacing or reinstating any damage or loss, and in the event such monies shall be insufficient shall pay the necessary shortfall.
 - 4.2. All policies of insurance required to be effected by the Tenant shall be taken out with an insurance company reasonably acceptable to the Landlord, and copies of such policies of insurance shall be available for inspection by the Landlord when necessary upon reasonable notice.
5. **Maintenance of HVAC Units and Pest Control**
 - 5.1. The Tenant shall, at the Tenant's own cost and expense, engage the Landlord's appointed contractor to service and maintain all heating, ventilation and air-conditioning (HVAC) units (if any) provided by the Landlord and servicing the Premises on a bi-monthly basis. Such contract shall be given to the Landlord within one (1) month from the commencement of the Lease. All HVAC units shall be in good working condition on the expiry or earlier determination of the Term.

- 5.2. The Tenant shall take all reasonable steps to keep the Premises free of rodents, vermin, insects, pests, termites, birds, animals and livestock and shall at the Tenant's own expense enter into a direct contract with the Landlord's appointed contractor on a bi-monthly basis. Such contract shall be given to the Landlord within one (1) month from the commencement of the Lease.
6. Repairs: At all times the Tenant shall repair and keep the Premises and the Landlord's fixtures, fittings and installations (including but not limited to all flooring, plaster and other surface material on the walls and ceilings and the painting and varnishing of the windows and any glass and all drains, sewers, conduits, flues, gutters, gullies, channels, ducts, shafts, watercourses, pipes, cables, wires and mains within and serving the Premises) in good and tenantable repair and condition, fair wear and tear excepted, and to make good, repair, replace and reinstate any damage or breakage howsoever caused or occurring in any part of the Premises and to the Landlord's fixtures, fittings and installations.
7. Alterations
- 7.1. The Tenant shall not effect any works, extensions, alterations or additions whatsoever to or affecting the interior or the exterior of the Premises without the prior written consent of the Landlord. For the purpose of seeking the Landlord's consent hereunder, the Tenant shall submit to the Landlord all plans, specifications and details of proposed materials to be used for any proposed alterations and additions ("Proposed Plans"). The Landlord shall be entitled to engage its architects, engineers or other consultant(s) for the purpose of considering the Proposed Plans and for the purpose of supervising all works carried out by the Tenant, the fees and expenses of such architects, engineers and consultant(s) incurred in connection therewith shall be borne by the Tenant and forthwith paid by the Tenant to the Landlord on written demand.
- 7.2. All alterations and additions to the Premises shall only be carried out by a contractor appointed by the Tenant and approved by the Landlord.
- 7.3. The Tenant shall apply for and obtain all planning and other licenses, permits and consents necessary or required under law, the Building Rules or by the Landlord for its alterations and additions and shall carry out and complete all alterations and additions to the Premises in accordance with the Proposed Plans as approved by the Landlord, in a good and workmanlike manner and in compliance with the Building Rules and the requirements of the Landlord. Major demolition or noisy works are to be carried out with proper coordination with tenants within the Building and an agreed schedule of the works is to be submitted to the Landlord. The Tenant shall ensure the cleanliness of the Common Area and ensure proper disposal of debris or materials during all alterations and additions works.
8. Notices
- 8.1. The Tenant shall immediately give written notice to the Landlord of any damage to or at the Premises and of any other accidents or damage caused to any fittings or fixture or installation serving or within the Premises provided by the Landlord or of any circumstances which are likely to be hazardous to or jeopardize the safety of any person or property.
- 8.2. The Tenant shall immediately give written notice to the Landlord of any notice received by the Tenant from any government or public or statutory authority relating to or affecting the Premises or the Tenant's business thereon.
9. Inspection and Access
- 9.1. Subject and without prejudice to paragraph 9.3, the Tenant shall permit the Landlord, and the agents, workmen, independent contractors and others employed or engaged or authorized by the Landlord or by any government or statutory authority, at all reasonable times, after giving to the Tenant prior notice, to enter upon the Premises:—
- (i) to examine the state and condition of the Premises including any fitting, fixture or installation serving the Premises; and/or
 - (ii) to effect or carry out any maintenance, repairs, alterations or additions or other works which the Landlord may consider necessary or desirable in respect of any part of the Premises including any fitting or fixture or installation or equipment serving the Premises; and/or
 - (iii) for the purpose of exercising any of the powers and authorities of the Landlord under this Lease; and/or
 - (iv) to comply with any obligation of repair, maintenance or management affecting the Premises; and/or
 - (v) to exhibit the Premises to prospective buyers or tenants or any other party the Landlord authorizes for the purpose of any sale, lease or tenancy, or the valuation, of the Premises, and during the period of six (6) months prior to the expiration or earlier determination of the Term of this Lease, unless the parties shall have reached a written binding agreement to renew the Lease herein, the Landlord may post any "To Let" or "To Lease" sign upon the Premises; and/or
 - (vi) for any other reasonable purpose as the Landlord deems fit.

- 9.2. The Tenant's obligations under this Lease shall not be affected by any of the works specified in this paragraph 9 and the Landlord shall not be liable for any inconvenience, disturbance, loss of business or any other nuisance arising from such works.
- 9.3. The Tenant shall permit the Landlord and its agents and/or workmen free access into the Premises at all times in any case that the Landlord considers an emergency.
- 9.4. The Landlord shall be allowed to take all materials into and upon the Premises as may be required without the same constituting an eviction of the Tenant in whole or in part.
10. Surrender at the end of Term
- 10.1. On the expiry or earlier determination of the Term (unless the parties shall have reached a written binding agreement to renew the Lease herein) the Tenant shall at its cost and expense:—
- (i) quietly and peaceably yield up the Premises with the fixtures, fittings and installations (including all HVAC units installed by the Tenant), unless required by the Landlord to be removed, in good and substantial and tenantable repair and condition (fair wear and tear excepted) together with all locks, fastenings and keys to the Premises complete (irrespective of whether the same have been supplied by the Landlord) and, if so required by the Landlord, shall remove all letterings, marks, signs, internal partitions, fixtures, fittings, equipment, furniture and installations and any other movable items not on the inventory list, as are specified by the Landlord, from the Premises and reinstate and redecorate the Premises, in particular but not limited to all HVAC installation, sprinkler systems and other electrical installations, ceiling, walls, floor, doors and windows, to bare condition fair wear and tear excepted; and
- (ii) make good to the satisfaction of the Landlord all damage to the Premises resulting from the removal of the Tenant's belongings, reinstatement or redecoration of the Premises. This includes:
- (a) removing from the Premises all such partitions, fixtures, fittings and chattels as the Landlord may require;
- (b) removing all rubbish and waste material from the Premises;
- (c) washing the whole of the interior of the Premises;
- (d) painting, graining, varnishing, re-polishing or other appropriate treatment of all internal surfaces of the Premises;
- (e) replacing all ceiling and floor finishes which in the opinion of the Landlord are worn out or damaged, fair wear and tear excepted;
- (f) such other works as may be necessary to reinstate the Premises to their bare condition except wear and tear; and
- (g) making good all damage or defacement to the Premises caused by any of the foregoing.
- (iii) If the Tenant fails to comply with paragraph 10 above prior to the expiry of the Lease, the Landlord may carry out necessary works at the Tenant's cost and expense. The amount shall be reimbursed to the Landlord within seven (7) days on demand.
11. Loading and Electrical Installation
- 11.1. The Tenant shall not bring into the Premises any machinery, equipment, goods or object which, in the absolute opinion of the Landlord, will or is likely to cause any structural or any other strain or damage to any part of the Premises. The Tenant shall, if required by the Landlord, comply with the directions and requirements of the Landlord in respect of load distribution and positioning of all heavy equipment and articles in the Premises. The Tenant shall make good and indemnify the Landlord in respect of any damage to the Premises caused by the bringing in of any safe, heavy machinery, plant, equipment or goods.
- 11.2. The Tenant shall not use any equipment or device which will cause an overload on the electrical supply to the Premises.
12. Advertisements and signs
- 12.1. The Tenant shall not place or display at any part of the Premises so as to be visible from the exterior of the Premises or on the exterior of the Premises any writing, notice, sign, placard, poster, sticker, nameplate or any form of advertisement (illuminated or otherwise) (collectively called "Signs") other than a sign approved by the Landlord and conforming with all applicable laws, rules and regulations and requirements of the competent authorities, including but not limited to the Building Rules.
- 12.2. The Landlord shall be entitled to enter the Premises and remove any Signs which are placed or displayed in breach of these provisions and the Tenant shall pay to the Landlord on demand the expense of so doing.

- 12.3. Without prejudice to paragraph 12.1 above, the Tenant shall maintain at its own cost and expense all such signs placed or displayed within or on the exterior of the Premises and shall, upon the expiry or earlier determination of the Term (unless the parties have reached a written binding agreement to renew the Lease herein), remove at its own cost and expense all such signs and make good any damage resulting from such removal.
13. Compliance with statutes, etc.: The Tenant shall comply and shall procure the Tenant's Occupiers to comply in all respects with the provisions of all statutes and regulations being in force and requirements of any competent authority relating to the occupation and use by the Tenant of the Premises (including, in particular but not limited to, the Building Rules and any other requirements under applicable zoning and land development regulations and of the City of Austin, Travis County and all other competent authorities) and the conduct of the Tenant's business and anything done in or upon the Premises by the Tenant and shall indemnify the Landlord against all actions, proceedings, claims or demands which may be brought or made by reason of such statutes, regulations or requirements or any default in compliance with them.
- 13.1. The Tenant shall observe and conform to all regulations made by the Landlord or its duly authorised agents for the proper management of the Premises and the Premises situated in the Building and its surrounding areas, such regulation being noticed in writing by the Landlord or its duly authorized agents to the Tenant from time to time.
14. Indemnity by Tenant: The Tenant shall occupy, use and keep the Premises at the Tenant's sole risk and responsibility and shall indemnify and keep indemnified the Landlord from and against:—
- (i) all claims, demands, writs, summonses, actions, suits, proceedings, judgments, orders, decrees, damages, costs, losses and expenses of any nature whatsoever which the Landlord may suffer or incur in connection with loss of life, personal injury and/or damage to property arising from or out of any occurrences in, upon or at the Premises or any part thereof by the Tenant or by any of the Tenant's Occupiers; and
 - (ii) all loss and damage to the Premises and the Building, and all loss of life and personal injury caused directly or indirectly by the Tenant or the Tenant's Occupiers and in particular but without limiting the generality of the foregoing caused directly or indirectly by the use or misuse, or waste or abuse, of water, gas or electricity or faulty fittings or fixtures.
 - (iii) any interruption in any of the services or facilities provided by the Landlord by reason of any improvement or upgrading works or necessary repair or maintenance of any installations or apparatus or damage thereof or destruction thereof by fire, water, act of God or other causes beyond the control of the Landlord or by reason of mechanical or other defect or breakdown or by reason of a strike of workmen or others or of a shortage of fuel, materials, water or labour.
 - (iv) any act of omission or negligence of any workman, attendant, servant or other employee of the Landlord in or about the performance or purported performance of any duty relating to the provisions of the said services or any of them.
15. Assignment and subletting
- 15.1. The Tenant shall not transfer, assign, sublet, license, part with or share possession or occupation of, or grant to third parties any rights over, the whole or any part of the Premises without the prior written consent of the Landlord and subject to any terms and conditions required by the Landlord.
- 15.2. A change of fifty percent (50%) or more in the ownership, partnership, shareholding or voting rights of the Tenant (referred to as a "Constitution Change") shall be deemed to be an assignment of this Lease and, unless the Landlord has given its prior written consent to such change, would constitute a breach of paragraph 15.1. For the purpose of determining whether there has been a Constitution Change, all changes in the ownership, partnership, shareholding or voting rights of the Tenant after the date of this Lease shall be taken into account on a cumulative basis.
- 15.3. A consent granted by the Landlord under paragraph 15.1 shall not constitute a waiver of the requirement for the Landlord's consent to any subsequent transfer, assignment, subletting, licensing, grant of possession, mortgage or encumbrance of this Lease or the Premises or any part thereof.
16. Constitution: The Tenant shall immediately notify the Landlord of the transfer or issue of any shares or interest or ownership or rights in the Tenant to any person, firm or company who was not, at the commencement date of this Lease, a shareholder, or a proprietor or partner of the Tenant, provided that the Tenant shall not effect or permit to be effected any such transfer or issue which will result in a Constitution Change without the Landlord's prior written consent.
17. Noxious or inflammable substances: The Tenant shall not erect nor install any machinery or object which causes noise, fumes or vibration which can be heard, smelt or felt outside the Premises and shall not store in the Premises any petroleum or other inflammable, explosive or combustible substance.

18. Illegal or immoral purpose: The Tenant shall not use the Premises for any noxious, noisy or offensive trade or business nor for gambling nor betting nor any illegal or immoral act or purpose.
19. Sale, auction, exhibition or public meeting and Music: The Tenant shall not hold any sales by auction nor any exhibition, public meeting or public entertainment at the Premises. The Tenant shall not permit any music to be played or performed in the Premises so that it can be heard outside the Premises.
20. Minor Repair: To be responsible to arrange at its own expense all minor repairs and routine maintenance of the Premises and fixtures and fittings for each item of repair or replacement which is lesser than **Three Hundred Fifty and 00/100 Dollars (\$350.00)**. Where the cost of any repair or maintenance or replacement for each item is above **Three Hundred Fifty Dollars (\$350.00)**, the Tenant shall pay Three Hundred Fifty Dollars (\$350.00) per item and the balance shall be at the Landlord's account, subject to such repair not being caused by the Tenant's default, mishandling or negligence.
21. Odors: The Tenant shall not permit any unusual or offensive odors to be produced upon or to permeate from the Premises.
22. Residential Purpose: The Tenant shall not allow any person to sleep in nor use the Premises for residential purposes.
23. Hygiene and General Cleanliness: The Tenant shall ensure that the delivery of goods and foodstuffs onto the Premises shall be at the times and in the manner approved by the Landlord.
24. Disposal of Waste, Food, Refuse, etc.: The Tenant shall not throw or dispose or permit to be thrown or disposed into any sinks or toilets of the Premises any garbage, refuse, waste, swill and remnant food cooked or uncooked, rags, tins or bottles but at all times shall provide for the storage of such garbage, refuse, waste, swill, remnant food, rags, tins or bottles in air-tight containers and bins and shall provide efficient service for the collection and proper disposal thereof by the Tenant.
25. Grease traps / Floor traps: Where applicable, the Tenant shall at its own expense keep the grease trap(s) and floor trap(s) in the Premises in good order and repair, and shall not throw any rubbish or article or suffer any rubbish or article to be thrown into the said grease trap(s) and floor trap(s).
26. Cleanliness: The Tenant shall keep the Premises, its sidewalk and every part thereof clean and hygienic and all pipes, drains, sinks and water-closets in the Premises clean and unblocked. The Tenant shall not throw dirt, rubbish or other refuse or permit the same to be thrown anywhere other than in proper containers and in the proper designated places and shall ensure that such dirt, rubbish and other refuse is regularly collected and disposed.
27. Pollution: The Tenant shall not permit to be discharged into the pipes, drains, exhaust ducting, basins and sinks any oil or grease or smoke or any deleterious, objectionable, dangerous or poisonous matter or substances and shall take reasonable measures to ensure that any effluent discharge into the pipes, drains, exhaust ducting and sinks will not be corrosive or cause any obstruction in them and shall at all times be free from foul odors.
28. Use of Gas: The Tenant shall ensure the Premises is supplied with the type and brand of gas approved by the Landlord and the applicable authorities and that no other fuel will be used on the Premises for all cooking carried on in the Premises.
29. Infectious Diseases: In the event of any infectious illness set out in applicable public health laws and regulations occurring at the Premises, the Tenant shall give notice thereof to the Landlord and the proper authorities and at its cost and expense shall fumigate and disinfect the Premises and shall comply with the reasonable and lawful requirements in respect of the same.
30. Annoyance or Nuisance: The Tenant shall not do anything which may be or may become a nuisance, annoyance, disturbance, an inconvenience or may cause damage to the Landlord or any owners, tenants, licensees and occupiers of any neighboring premises. Any performance or playing of loud music will be subject to any license granted by the authority for the premises where applicable.
31. Aerials, masts and antenna: The Tenant shall not erect, display, affix or exhibit on or to any part of the Premises visible to the exterior any light, flag, notice, pole, mast, wire, radio or television aerial or antenna or any loudspeaker or similar devices at the Premises without the prior written consent of the Landlord and provided always that the Tenant shall at its cost obtain all necessary approvals from the competent authorities. Any consent given may at any time be withdrawn as the Landlord may determine.
32. Fire and Alarm systems
- 32.1. The Tenant shall not install nor maintain any security system at the Premises without the prior written approval of the Landlord or which may interfere with any fire system installed or maintained by the Landlord for the Premises (if any).

- 32.2. The Tenant shall be responsible at the Tenant's own cost and expense for the maintenance of the fire protective system installed at the Premises, including without limitation, attending to and investigating the cause of all alarms, disengaging the alarm forthwith in the event of a false alarm, and ensuring that the fire alarm system is functioning properly at all times during the Term. The Tenant shall indemnify and keep the Landlord indemnified against any fines or penalties imposed by the competent authorities in respect of any improper use or misuse of the fire protective system.
- 32.3. No rubbish or waste or anything whatsoever shall at any time be burnt upon the Premises or any part thereof.
33. Avoidance of Landlord's insurance policies: The Tenant shall not do anything whereby any policy of insurance on the Premises taken out by the Landlord may become void or voidable or whereby the rate of premium thereon may be increased. The Tenant shall within seven (7) days of demand reimburse the Landlord as a result of a breach or non-observance by the Tenant of this covenant. The Tenant shall provide one or more efficient fire extinguishers of a type approved by the Landlord and take such other precautions against fire as may be deemed necessary by the Landlord or its insurers.
34. Security: The Tenant shall ensure that all doors of the Premises are safely and properly locked and secured when the Premises are not occupied and shall use its best endeavors to protect and keep the Premises and any property contained therein from theft or robbery. The Landlord will provide keys for locks on doors or other openings of the Premises and the Tenant will return to the Landlord on the determination of the tenancy all such keys and shall not permit the same at any time to come into the possession or control of any person other than the Tenant, its servants or agents.
35. Obstruction: The Tenant shall not in any way obstruct nor permit the obstruction of the Common Area or any public walkway or pavement or lane or road or car parking area at or near the Premises.
36. Access to Competent Authorities: The Tenant shall permit any duly authorized representative, employee, agent or servant of any relevant authority, at all reasonable times, to enter into the Premises or any part thereof for the purpose of ensuring that the provisions of all statutes and regulations for the time being in force and requirements of any competent authority relating to the Premises have been complied with.
37. Option to Renew: If the Tenant desires to have a renewal of the Lease of the Premises upon the expiry of the Term, the Tenant shall give to the Landlord written notice to that effect not less than three (3) months prior to the expiration of the Term and if the Landlord is desirous of leasing the Premises to the Tenant and the Landlord and the Tenant can agree to the rental and other terms of the renewed lease, the Tenant may have a further term of one (1) year lease of the Premises on such terms and conditions as may be mutually agreed to between the Landlord and the Tenant. Provided always that within one (1) week of receipt of the Landlord's proposal for the revised rent, the Tenant shall in writing inform the Landlord whether the revised rental is acceptable or otherwise. In the event that the revised rental is not acceptable to the Tenant or if the Tenant fails to give any written response to the Landlord within the aforesaid one (1) week period, then it shall be deemed that the Tenant is no longer interested in renewing the Agreement and the Landlord shall be free to terminate all negotiations with the Tenant for the renewal of the Agreement. If the Landlord's proposal for the revised rent is accepted by the Tenant within the aforesaid one (1) week period, the Tenant shall sign the renewal Agreement within two (2) weeks of receipt of the renewal Agreement documents.
38. Confidentiality: The Tenant shall keep confidential and shall not at any time disclose or permit to be disclosed the terms of this Lease, or any negotiations or discussions relating to this Lease, except with the prior consent of the Landlord or as required by any Laws.

AS WITNESS the hands of the parties hereto the day and year first above written.

SIGNED BY

FOR & ON BEHALF OF THE LANDLORD

Rainey Street Properties III, LLC

Michael R. Donnelly

Name: Michael R. Donnelly

Title: Managing Member

Sarah Whitfield

In the presence of: Name: Sarah Whitfield

SIGNED BY

FOR & ON BEHALF OF THE TENANT

Rootbridge Technologies, Inc.

David A. Chen

Name: David A. Chen

Title: Chief Executive Officer

Laura Bennett

In the presence of: Name: Laura Bennett